

child, as for money advanced by the child or on any other account, a bequest by the father to the child is no satisfaction, where it would not be a satisfaction as between the father and a stranger (*e*), but what would be a satisfaction as between strangers, will also be a satisfaction as between father and child (*f*).

13. **Contingent legacy.** — A *contingent* legacy bequeathed by a father will not be a satisfaction of a *vested* interest in the child under a previous settlement (*g*).

14. **Strangers may be benefited.** — A *stranger* may indirectly derive advantage from the doctrine of ademption, as where a testator gives a legacy to the child, and the residue to strangers, and then in his lifetime advances the child beyond the amount of the legacy. Here the ademption of the legacy swells the *quantum* of the residue for the benefit of the residuary legatees. This arises not from the application of the doctrine, but in spite of it, and therefore, where a testator bequeaths his residue equally between his wife or a stranger, and his child, and then advances the child in his lifetime, here the advance is not brought into account so as to augment the residue for the benefit * of the wife [*408] or stranger, but the wife or stranger can claim only the moiety of the actual residue (*a*).

15. **Ademption and satisfaction distinguished.** — Ademption and satisfaction are often confounded, but one broad distinction between them must not be lost sight of. Where the will precedes and the settlement follows, the settlement is an actual *extinguishment* of the claim under the will. But where the settlement precedes and the will or gift follows, here as the settlement created a legal obligation or vested a legal right by act *inter vivos*, the subsequent testamentary disposition cannot annul it, but all that equity can do is to put the parties entitled under the legal obligation or legal gift, to their *election*. Thus a testator bequeaths 1000*l.* to

(*e*) *Tolson v. Collins*, 4 Ves. 483; 352; *Chichester v. Coventry*, 2 L. R. Fairer v. Park, 3 Ch. D. 309. H. L. 96, per Lord Romilly.

(*f*) *Edmunds v. Low*, 3 K. & J. 318. (*a*) *Meinertzhagen v. Walters*, 7 L. R. Ch. App. 670; [and see *Stewart v. Stewart*, 15 Ch. D. 539.]

(*g*) *Bellasis v. Uthwatt*, 1 Atk. 426; *Hanbury v. Hanbury*, 2 B. C. C.